

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202928

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: JENNIFER LARSEN	
vs.	
DEFENDANT: SHIRLEY DERNER, ET AL.	

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff's Motion to Compel Production of Documents served November 1, 2022.

The matter was called on June 12, 2026, as regularly scheduled and continued for two weeks to June 29, 2026, to provide additional time for the parties to fully participate in the Discovery Facilitator program. The court appreciates the cooperation and patience of the parties.

Pursuant to Marin County Rule, Civil 2.13B, on May 12, 2026, Gautam Jagannath, Esq. was appointed to preside as Discovery Facilitator. The matter before the Court is a narrow discovery dispute concerning two document requests, both directed at insurance: Plaintiff's Requests for Production of Documents, Set One, Nos. 7 and 18. Mr. Jagannath lodged his report with the court on or about June 18, 2026.

Plaintiff served her Requests for Production, Set One, on November 1, 2022. All three defendants served verified responses, on or about December 9, 2022. After the meet and confer process, on February 13, 2023, defendants served verified supplemental responses for Rick Oliva and for Cheryl Oliva as trustee. Those supplements, among other things, supplemented Request No. 7 with a statement of compliance and a document production.

A motion to compel a further response to a demand for the production of documents must be made promptly. Code of Civil Procedure provides that "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (Code Civ. Proc., § 2031.310(c).)

This 45-day limit is a statutory deadline. Once the period runs without a timely motion or a written extension, the Court is without authority to order a further response. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) The clock runs from service of the verified response. A response containing both substantive responses and objections must be verified before the 45-day period begins to run. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127.) Responses containing only objections are not required to be verified, but Golf & Tennis did not fully resolve how the 45-day deadline applies to an objections-only response.

The main issue here is timeliness. The discovery was exchanged in December 2022, with verified responses. The clock started, and it expired at some point likely in early 2023. Defendant argues that the motion is three years too late and there is no written agreement to either extend the discovery or keep the response deadline open, indefinitely. Plaintiff agrees that there is no written agreement memorializing any such extension.

The court acknowledges that there may have been confusion relative to whether there was an extension granted because Plaintiff was represented by several lawyers, and the insurer substituted coverage counsel. These type of representation issues magnify the importance of memorializing agreements and keeping an accurate client file.

Plaintiff's Motion to Compel Further Responses to Requests for Production Nos. 7 and 18 is DENIED as untimely under Code of Civil Procedure section 2031.310(c). The denial is without prejudice. Plaintiff may choose to re-tailor her requests directed at the insurance information she seeks, and the court hopes to avoid further conflict on the same issue raised. Plaintiff may not re-propound the identical Requests Nos. 7 and 18, or materially duplicative requests, for the purpose of reviving the expired deadline.

Sanctions are not warranted given the number of law firms that have touched the file for both parties, causing genuine confusion about discovery deadlines.

This case should now be ready for a trial date, which will be set at the next Case Management Conference currently scheduled for September 21, 2026.

The parties should anticipate a February 2027, trial date.

Plaintiff to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2300292

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: SARAH MALAGA	
vs.	
DEFENDANT: COMMUNITY BANKERS SERVICES CORPORATION, ET AL	

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL OF SETTLEMENT

RULING

On May 21, 2026, Plaintiff Sarah Malaga filed a motion seeking preliminarily approval of a representative wage and hour case under California’s Private Attorney General Act (“PAGA”), Labor Code § 2698, et seq.

Plaintiff asks that the Court to preliminarily approve this representative PAGA settlement, in which Defendants Community Banker Services Corporation and WestAmerica Bancorporation (together, “Defendants”) have agreed to pay \$167,500.00. After deducting administration costs and requested attorneys’ fees and costs, approximately \$88,592.02 will be available for distribution to Aggrieved Employees and the LWDA. The employee payout portion of the settlement provides for twenty-five percent (25%) of this amount will be allocated to Aggrieved Employees and the remaining seventy-five percent (75%) to the Labor Workforce and Development Agency (“LWDA”).

Defendant stipulates to the settlement and did not file an opposition.

The terms are:

1. Defendant will pay a maximum of \$167,500.00, of which, \$88,592 will be distributed on *pro rata* basis according to the total worked by each aggrieved employee after the payment to the LWDA during the claims period. There are approximately 224 employees who will benefit from the settlement. The LWDA will receive \$66,440 of the settlement, with the remaining \$22,148 flowing to the employees.
2. The settlement period is from November 30, 2021, to July 1, 2022.
3. The Administrator will disburse the entire settlement amount based on a distribution process negotiated by the parties.
4. The Settlement will release specified wage-and-hour specified claims for PAGA Penalties for all Aggrieved Employees.